



Terms of Rental

DATE:

CONTACT hereinafter "THE CUSTOMER":

ADDRESS/SITE:

EMAIL:

PHONE:

This agreement, executed as of the date set forth above, is between The Customer and the owner of Hooked Dumpster Rentals LLC. This agreement supersedes all prior agreements and understanding, whether oral or written, between the two parties with respect to the subject hereof.

Hooked Dumpster Rentals LLC will provide dumpster disposal services using dumpster containers. Service will be provided on the day agreed upon. You **MUST** call 24 hours in advance to schedule a pick up, drop off, or swap.

PRICING

The following prices are for Madison County. For sites outside of Madison County local county landfill/transfer station fees will apply. Sites outside of Madison County will include local fees and any additional travel fees that will be agreed upon between Hooked Dumpster Rentals LLC, and The Customer before service begins. Rental period begins the day the dumpster is dropped off unless otherwise stated and granted by Hooked Dumpster Rentals LLC.

14-Yard Dumpster

Daily Rental Fee: \$3.00
Delivery Fee: \$75.00
Dump Fee: \$125.00
+ \$50.00 Landfill Fee
(Construction Waste, non-mixed)
+\$100.00 Per Ton Transfer
Station Fee

20-Yard Dumpster

Daily Rental Fee: \$3.00
Delivery Fee: \$75.00
Dump Fee: \$150.00
+ \$50.00 Landfill Fee
(Construction Waste, non-mixed)
+\$100.00 Per Ton Transfer
Station Fee

(Mixed Material)

(Mixed Material)

PAYMENT

Prepayment at the time of reservation is required by debit card or credit card. Hooked Dumpster Rentals LLC reserves the right to use the card provided for payment to bring the account balance to zero. In the event that a card declines, The Customer is liable and agrees to provide **IMMEDIATE** alternative source of payment until the account balance is brought back to zero. If The Customer does not provide alternative source of payment or replacement card and/or refuses to pay, Hooked Dumpster Rentals LLC reserves the right to reclaim dumpsters from a site unannounced, at any time, and discontinue service immediately.

ACKNOWLEDGMENTS

The Customer acknowledges that Hooked Dumpster Rentals LLC shall not be held liable for any damage to driving surfaces resulting from Hooked Dumpster Rentals LLC trucks servicing containers on agreed upon areas and the surroundings. The Customer acknowledges that they are **NOT** allowed to move any dumpsters with their personal equipment or a third party's equipment.

EQUIPMENT RENTAL CONDITIONS

1. The Customer is responsible for scheduling a drop off/pick up of dumpster(s).
2. The Customer is responsible for ensuring dumpster(s) are not overloaded.
3. In no event will The Customer load debris weighing more than 8,000 lbs. In the event that the dumpster is loaded with more than 8,000 lbs, The Customer is liable and will pay costs of damage to dumpster or equipment and a \$100.00 dry run fee. The Customer is responsible for unloading the dumpster until it reaches the appropriate weight limit of 8,000 lbs, and for paying the \$100.00 dry run fee. The Customer is responsible for the weight and contents of their rented dumpster above 8,000 lbs.
4. Upon removal of the dumpster(s), Hooked Dumpster Rentals LLC reserves the right to charge The Customer for any repair or replacement costs attributable to damage of the dumpster while in The Customer's possession. The Customer is liable for any repair or replacement costs.
5. Blocking or impeding retrieval of a dumpster on agreed pick up date will result in a charge of a \$100.00 dry run fee.
6. Refusal to pay means material and debris will be unloaded on site. The Customer acknowledges and agrees that refusal to pay means Hooked Dumpster Rentals LLC is **NOT** held liable for any damage to The Customer's equipment or property as a result of unloading material.

CUSTOMER AGREEMENTS

1. The Customer certifies that he or she is either the property owner, has power of attorney for the property owner, or is the licensed contractor/broker for the property.
2. The Customer hereby agrees they will **NOT** sublet the dumpster(s).
3. The Customer agrees to rent a dumpster from Hooked Dumpster Rentals LLC according to price and fees set forth. The rental period begins the day the dumpster is dropped off unless otherwise stated or granted by Hooked Dumpster Rentals LLC.
4. The Customer agrees to strict tonnage of 8,000 lbs and will not exceed. In the event The Customer exceeds weight limit, The Customer hereby agrees to unload debris/waste material until proper weight limit is reached, agrees to pay \$100.00 dry run fee, and agrees that they are liable for the extra material.
5. The Customer warrants and represents that any location provided for the dumpster is sufficient to bear the weight and size of the dumpster and any vehicle required to transport the dumpster. The Customer agrees that Hooked Dumpster Rentals LLC will **NOT** be held responsible for any damage to pavement, road surfaces, lawn, fences, septic systems, private well, mailboxes, or any other form of property damage.
6. The Customer agrees to provide unobstructed access to the dumpster on the day of scheduled pickup. If the dumpster is inaccessible, The Customer will be charged and agrees to pay a \$100.00 dry run fee, and is responsible for rescheduling.
7. Travel outside of Madison County will incur travel charges to be agreed upon by Hooked Dumpster Rentals LLC and The Customer. Travel fees will include negotiated price for time and mileage. The Customer agrees to pay any additional travel charges that are agreed upon.
8. After hours delivery/pickup, such as on a Saturday, as requested by The Customer will be an additional \$200 fee. No service on Sunday will be provided.
9. The Customer agrees to pay and accepts responsibility for all charges related to their dumpster rental.

CONTENT REGULATIONS

For the purpose of this agreement, “hazardous materials” shall mean any waste which is listed, has the characteristics of, or is otherwise identified as hazardous waste or subject waste under applicable state or federal laws or regulations, including but not limited to the Resource Conservation and Recovery Act of 1976 (42 U.S.C. et se. and the regulations promulgated thereunder). “Unacceptable material” shall mean any non-hazardous waste which is not permitted to be processed at a facility under applicable laws or permits, source, special nuclear or byproduct material as defined by the Atomic Energy Act of 1954 and the regulations thereunder; asbestos-containing waste; mercury-containing waste, and any waste delivered by The Customer which is not approved by Hooked Dumpster Rentals LLC. If The Customer has any questions about whether a particular material is considered hazardous, The Customer **MUST** call Hooked Dumpster Rentals LLC before disposing of the material into the dumpster.

1. The Customer acknowledges and accepts full responsibility for all contents of dumpster(s), and is the rightful owner of the dumpster contents until the dumpster is picked up by Hooked Dumpster Rentals LLC and **ACCEPTED** by prospective disposal facility.
2. The Customer acknowledges that they may **NEVER** place flammable material or liquids in the dumpster.
3. The Customer is responsible for dumpster and contents while dumpster is on a client's site.
4. Loading of hazardous or unacceptable material is prohibited. The Customer agrees that the dumpster will **NOT** contain any hazardous material and acknowledges that disposal of such hazardous material is strictly prohibited.
5. The Customer acknowledges and agrees to pay any cleaning fees due to loading of restricted, prohibited, unaccepted, or hazardous material. Cleaning fees may be billed at a third-party rate plus a reasonable markup.
6. Debris may **NOT** extend above the top rim of the dumpster. The tarp **MUST** be able to roll completely over the top of the dumpster **WITHOUT OBSTRUCTION**. The end doors **MUST** be **CLOSED** and secured **BEFORE** it can be removed from the site. Overfilled or unprepared dumpsters will be brought into compliance at The Customer's expense and may result in debris being left on site after pickup. The Customer accepts liability for extra material that exceeded the top of the dumpster or exceeded weight limit. The Customer agrees **NOT** to hold Hooked Dumpster Rentals LLC responsible for extra material as Hooked Dumpster Rentals LLC is **NOT** responsible for extra material for reasons listed above in terms and conditions.
7. Dumpsters will **NOT** be moved by The Customer at **ANY** point before, during, or after the rental. If dumpster(s) need to be moved, The Customer **MUST** call and agrees to call Hooked Dumpster Rentals LLC and a dry run fee of \$100.00 will be charged to have a truck respond and move the dumpster on site.
8. If contents not allowed by these terms or any Federal, State, or City agency are disposed of into dumpster, all costs, fines, or penalties, or other actions taken for said disposal, The Customer is fully responsible for paying all associated charges. Costs may include but are not limited to cleanup, monitoring, legal fees, penalties, or any other charges associated with the unauthorized material disposal. Materials may be returned to The Customer at The Customers expense.

PERMITS, APPROVALS, FEES

The Customer is responsible for obtaining all necessary permits and approvals, and paying for all fees that may be incurred in conjunction therewith. Hooked Dumpster Rentals LLC is **NOT** responsible for ensuring The Customer has appropriate permits and approvals and is **NOT** responsible for any consequences in relation.

INDEMNIFICATION

The Customer agrees to indemnify and holds harmless/blameless Hooked Dumpster Rentals LLC from, against, and in respect to all claims, losses, expenses, damages, obligations and liabilities (including costs of collection and attorney's fees) of any kind or nature whatsoever, including any misrepresentation, breach of warranty, or non-fulfillment of any representation, warranty, covenant, or agreement of or by The Customer in this agreement. This provision **SHALL** survive the termination of this agreement.

INSPECTION/REJECTION OF PROHIBITED WASTE

Title to and liability for Prohibited Waste shall always remain with The Customer, and Hooked Dumpster Rentals LLC reserves the right to inspect, analyze, and test any waste delivered by The Customer. Hooked Dumpster Rentals LLC reserves the right to reject **ANY** material that is determined to be unacceptable, hazardous, or prohibited material.

Consequences of violating regulations as listed in terms of rental, or breach of agreement, will result in refusal of service. In such cases The Customer will be **REQUIRED** to pay in full, and Hooked Dumpster Rentals LLC will **NOT** be held responsible for fulfilling agreement.

ITEMS NOT TO BE PLACED IN THE DUMPSTER

CONSTRUCTION WASTE:

- Carpet/carpet pad
- Liquids
- Burnt Material
- Tires
- Batteries
- Pressurized Containers
- Household Garbage

HOUSEHOLD WASTE:

- Liquids
- Burnt Material
- Batteries
- Pressurized Containers
- Medical Waste

By signing, I acknowledge that I have read, understand, and agree to **ALL** terms and conditions of this rental agreement as listed above.

CUSTOMER:

DATE:

HOOKE DUMPSTER RENTALS LLC:

DATE:

Thank you for your business!